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WASHINGTON COUNTY
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IN THE CIRCUIT COURT OF THE STATE OF OREGON

IN AND FOR WASHINGTON COUNTY

JUVENILE DEPARTMENT

In the Matter of:

Case No.: 25JU04261

ALMIRA DAVIS, DOB: 06/23/2011

MOTHER'S DECLARATION IN SUPPORT OF
Or. R. Civ. P. 21 MOTION TO VACATE AND
DISMISS

A Child

I. DHS'S DEMONSTRABLY FALSE TESTIMONY REGARDING SAFETY PLAN

On September 6, 2025, at 5:59 PM, Mother received a text message from Oregon Department of Human Services ("DHS") Supervisor Heather Kitto. The message stated: "My workers Wiengkhone and Nicole Bennett have been trying to reach you to assist with a ride to the hospital so that we can release custody to you. It's urgent that you return one of our calls as soon as possible so that we can make those arrangements." (Exhibit A, Text Message 1, Sept. 6, 2025, 5:59 PM).

At the identical timestamp of 5:59 PM on September 6, 2025, Mother received a second text message from Supervisor Kitto reversing the prior communication. This second message stated: "Please do call. We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight." (Exhibit A, Text Message 2, Sept. 6, 2025, 5:59 PM).

At 7:01 PM on September 6, 2025, Supervisor Kitto sent Mother an email. (Exhibit B, Email from H. Kitto, Sept. 6, 2025, 7:01 PM). This email references "safety concerns," "protective capacities," and "continued need for safety assessment" in passing. Critically, this email was sent after DHS had already made and communicated its decision to maintain protective custody. The 5:59 PM text message had already informed Mother that Almira "will not be released to your custody tonight" and "will remain in protective custody." The decision was final before the email was sent.

Even if the email's passing reference to "safety assessment" could be construed as an implicit offer of safety planning—which it cannot—such an offer would be legally meaningless. Oregon law requires DHS to offer safety plans and make reasonable efforts to prevent removal before taking or maintaining protective custody, not after the

1 custody decision has been finalized. ORS 419B.150(1)(a). An agency cannot satisfy its statutory obligation to
2 prevent removal by mentioning safety assessments in an email sent after the agency has already decided to maintain
3 custody. The temporal sequence is dispositive: decision first, email second. No offer of preventative services
4 preceded the decision to keep Almira in state custody.

5 The email contains no offer of a safety plan. The email proposes no preventative services. The email
6 requests only that Mother provide names of relatives for potential placement—that is, DHS sought Mother's
7 assistance in implementing the custody decision DHS had already made. The communication is unidirectional—
8 DHS announces its decision to maintain custody and requests information from Mother. No collaborative safety
9 planning is proposed, offered, or discussed.

10 The subsequent text message exchanges between Mother and Supervisor Kitto on September 7, 2025,
11 contain no reference to any safety plan. (Exhibit A, Text Messages, Sept. 7, 2025, 9:53 AM through 10:51 AM). The
12 communications concern only: (1) Almira's location at the hospital; (2) relative placement options; (3) service of
13 court summons; and (4) restrictions on Mother's contact with Almira. No safety plan is mentioned, proposed, or
14 offered in any communication.

15 DHS has represented to this Court that Mother "refused a safety plan." This representation is false. The
16 contemporaneous documentary evidence—text messages and emails sent by DHS's own supervisor—establishes
17 that no safety plan was offered to Mother at any time before DHS elected to maintain protective custody of Almira.
18 One cannot refuse what has not been offered.

19 II. THE LEGAL SIGNIFICANCE OF DHS'S FALSE TESTIMONY

20 Oregon's statutory scheme governing juvenile dependency matters imposes upon DHS a mandatory
21 obligation to make "reasonable efforts" to prevent a child's removal from parental custody. ORS 419B.150(1)(a).
22 This obligation is not discretionary. The statute requires DHS to explore and offer in-home safety plans,
23 preventative services, and support to families before resorting to the coercive power of the state to separate a parent
24 from a child. *See State ex rel. Juv. Dept. v. Geist*, 310 Or 176, 187, 796 P2d 1193 (1990) (reasonable efforts
25 requirement serves to preserve family integrity while protecting child safety).

26 DHS made no reasonable efforts to prevent Almira's removal from Mother's care. The documentary record
27 is devoid of any attempt by DHS to:

28 Offer Mother an in-home safety plan;

- Assess Mother's actual protective capacities through dialogue or home visit;
- Explore what services or supports might enable Almira's safe return to Mother.
- Engage Mother in collaborative safety planning of any kind; or
- Provide Mother a meaningful opportunity to demonstrate her protective capacities before the decision to maintain custody was finalized.

Instead, DHS proceeded directly from the decision to take protective custody (following the father's alleged assault) to the decision to maintain that custody against Mother, without any intervening step in which Mother's capacity to protect Almira was assessed or in which preventative alternatives to continued state custody were explored.

The statutory framework is clear: removal is the last resort, not the first option. *State ex rel. SOSCF v. C.R.*, 271 Or App 379, 388, 351 P3d 369 (2015). When DHS fails to make reasonable efforts to prevent removal and then represents to the court that the parent "refused" services that were never offered, DHS has engaged in conduct that strikes at the foundation of the dependency process itself.

III. MOTHER'S EXERCISE OF PROTECTIVE CAPACITY

When DHS informed Mother that Almira had been taken into protective custody and was at the hospital, Mother immediately exercised protective capacity by arranging for her uncles, Eric and Marcus Taylor, to go to the hospital to retrieve Almira. Both are blood relatives and well-known to Almira, and were willing and available to ensure Almira's delivery to Mother. Mother's decision to mobilize family resources to protect her daughter is precisely the kind of protective action that demonstrates parental capacity.

DHS initially resisted this arrangement, informing Mother that they would not release Almira to "just anyone." Mother asserted her right to receive assistance from family members in caring for her child. DHS subsequently approved Marcus Taylor as a placement resource, certified him as a foster parent, and placed Almira in his care—the very placement Mother had identified and arranged. DHS's initial resistance to the family placement Mother secured, followed by DHS's adoption of that identical placement as the state's foster care solution, demonstrates that Mother's protective actions were appropriate and effective as well as the fact that DHS' decision making is arbitrary, punitive, defamatory and capricious.

On September 7, 2025, when Mother called the hospital to speak with Almira and inquire into her well-being, hospital staff informed her that no patient by Almira's name was registered or had been at the hospital.

1 Mother persisted in seeking information about her daughter's whereabouts and condition. DHS characterized this
2 persistence as Mother "escalating with staff and calling upon hospital security." (Exhibit A, Text Message from H.
3 Kitto, Sept. 7, 2025, 10:50 AM). Mother's efforts to locate her daughter and confirm her safety—when the hospital
4 claimed no knowledge of the child—reflect reasonable parental concern and protective vigilance, not escalation or
5 inappropriate conduct.

6 Both instances—securing family placement and seeking information about her daughter's location—
7 demonstrate Mother's protective capacities. DHS's recharacterization of these protective actions as evidence against
8 Mother inverts the statutory framework. Oregon law requires DHS to assess and support parental protective
9 capacities, not to penalize parents for exercising them.

10 Following these events, DHS unilaterally restricted Mother's contact with Almira. On September 7, 2025,
11 at 10:50 AM, Supervisor Kitto informed Mother: "Because there are concerns about the nature of your
12 communication with Almira and staff, your contact with Almira isn't going to be permitted today. We will work to
13 establish a plan for that contact after the court hearing tomorrow." (Exhibit A, Text Message from H. Kitto, Sept. 7,
14 2025, 10:50 AM). This restriction on contact was imposed by DHS without court authorization.

15 Oregon law does not permit DHS to unilaterally restrict parental contact absent a court order or exigent
16 safety circumstances specifically articulated and documented. ORS 419B.090(3) requires that parents "shall be
17 afforded all reasonable visitation rights" during the pendency of dependency proceedings. The restriction of parental
18 visitation is a significant deprivation of parental rights that requires judicial authorization based on specific findings
19 that visitation would be detrimental to the child. *State ex rel. SOSCF v. L.L.*, 305 Or App 514, 524, 470 P3d 1081
20 (2020).

21 DHS identified no specific safety concern justifying the deprivation of Mother's contact with Almira. The
22 stated basis—"concerns about the nature of your communication with Almira and staff"—is conclusory and
23 unsupported by particularized facts. Mother's inquiry into her daughter's location when the hospital denied Almira's
24 presence does not constitute a safety concern warranting denial of parental contact. Even if the Court were to assume
25 that Mother had been "uncooperative" or had "refused a safety plan"—allegations the record refutes—neither
26 alleged conduct would justify the complete prohibition of mother-child contact without court order or specific
27 findings of detriment to the child. DHS cannot lawfully use unsubstantiated allegations of parental non-cooperation
28 as grounds to deny a parent access to her child. The deprivation of parental contact is among the most severe actions

1 DHS may take, and Oregon law requires judicial oversight of such decisions. DHS's unilateral imposition of a
2 contact restriction, absent court authorization and absent articulated safety concerns supported by specific facts,
3 exceeded DHS's statutory authority and violated Mother's fundamental right to maintain her relationship with her
4 child.

5 **IV. Mother's Exercise of Parental Rights Characterized as "Non-Cooperation"**

6 Mother explicitly informed DHS that all communications were to occur via text message or email, not by
7 telephone, and matters like in-person service would need to be acknowledged surrounding mother's working or
8 other familial engagements with her other two children. Mother exercised this right deliberately and for sound
9 reason: to create a contemporaneous written record of all communications with DHS. This is Mother's prerogative.
10 Oregon law does not require parents to submit to telephonic or face-to-face interrogation by state agents. A parent's
11 insistence on written communication—particularly where that parent has reason to distrust the accuracy or
12 completeness of oral representations by DHS—is an exercise of reasonable caution, not evidence of non-
13 cooperation.

14 DHS characterized Mother's insistence on written communication as "non-cooperation." This
15 characterization appears in DHS's representations to the court and has been communicated to Almira herself. The
16 present record demonstrates the wisdom of Mother's insistence on written communication: had these exchanges
17 occurred by telephone, there would be no documentary evidence to refute DHS's false claim that Mother refused a
18 safety plan.

19 Mother cooperated with DHS at every stage:

- 20 a. Mother responded to DHS's text messages and emails;
- 21 b. Mother provided information about relative placement resources;
- 22 c. Mother arranged for her uncle, Marcus Taylor, a blood relative known to Almira, to go to the
23 hospital;
- 24 d. Mother requested updates on Almira's location and condition;
- 25 e. Mother communicated her work schedule and availability; and
- 26 f. Mother stated her willingness to identify additional family resources for consideration.

27 DHS's characterization of these actions as "non-cooperation" reveals an expectation that cooperation means
28 submission—that a parent cooperates only when she accedes to DHS's demands without question, communicates on

1 DHS's preferred terms rather than her own, and refrains from creating a documentary record of the agency's actions.
2 This is not the legal standard. A parent may cooperate fully with DHS while simultaneously protecting her own
3 interests and preserving evidence. The two are not mutually exclusive.

4 **IV. The Arbitrary Reversal of DHS's Initial Decision**

5 The timeline of DHS's decision-making warrants scrutiny. At 5:40 PM on September 6, 2025, DHS sought
6 to facilitate Mother's transportation to the hospital "so that we can release custody to you." Only 19 minutes later—
7 at 5:59 PM—DHS reversed this decision based on "new information" regarding Almira's reported suicidal ideation.

8 The reversal occurred without any intervening communication with Mother. DHS made no attempt to:

- 9 a. Discuss with Mother the nature of Almira's statements;
- 10 b. Assess whether Almira's statements reflected genuine suicidal intent or adolescent conflict with her
11 mother;
- 12 c. Explore whether a safety plan addressing the stated concern could permit Almira's return to Mother
13 while ensuring her safety;
- 14 d. Inquire into Mother's awareness of Almira's mental health or any prior incidents;
- 15 e. Determine what resources or supports Mother might need to address Almira's emotional state, or
16 whether Mother had already done so or not; or
- 17 f. Engage Mother in any dialogue whatsoever before finalizing the decision to maintain custody.

18 DHS's decision-making process consisted of: (1) an initial determination to release custody to Mother; (2)
19 the receipt of alleged new information; and (3) an immediate, unilateral reversal without providing Mother any
20 opportunity for input, discussion, or meaningful participation. This process violates Oregon's statutory framework,
21 which requires parents to be afforded notice and the opportunity to address concerns before custody is withheld or
22 changed. Under Or. Rev. Stat. § 419B.150 and 419B.171, protective custody may only be continued or imposed
23 upon specific, articulable evidence of imminent danger supported by current facts, and only after less restrictive
24 alternatives have been considered. Moreover, DHS's actions are inconsistent with the statutory mandate to act in the
25 child's best interest—a determination the law presumes aligns with the fit parent's role as primary caregiver absent
26 contrary evidence. Oregon statutes (Or. Rev. Stat. § 107.137) specifically prioritizes the parent-child relationship,
27 emotional bonds, and continuity in custody decisions, requiring meaningful parental involvement and respect for
28 parental rights. Excluding Mother from the decision-making process constitutes an arbitrary and unlawful

1 deprivation of parental rights and a failure to comply with Oregon's procedural safeguards governing child custody.
2 Oregon law requires more. When DHS elects to maintain a child in protective custody rather than releasing the child
3 to a parent, the decision must be based on an individualized assessment that includes consideration of the parent's
4 protective capacities. *State ex rel. SOSCF v. D.M.*, 255 Or App 1, 10, 295 P3d 1048 (2013). DHS cannot satisfy this
5 requirement by announcing its decision to take protective custody and notify the parent via text message and email
6 without first engaging the parent in any meaningful assessment process.

7 **V. The Basis for Continued Custody: Allegations That Cannot Survive Scrutiny**

8 DHS has identified three bases for maintaining Almira in out-of-home placement rather than releasing her
9 to Mother:

- 10 a. Mother "refused a safety plan";
11 b. Mother was "uncooperative" with DHS; and
12 c. Mother has a pending case in Washington County Circuit Court with an outstanding warrant.

13 The first basis is demonstrably false. No safety plan was ever offered to Mother as demonstrated in the
14 written documentary evidence accompanying this declaration. The contemporaneous written record—created by
15 DHS itself—establishes this fact beyond dispute.

16 The second basis reflects a fundamental mischaracterization of fact and law. Mother's insistence on written
17 communication and her exercise of the right to family integrity or the right to arrange family assistance are not acts
18 of non-cooperation; rather, they constitute essential exercises of parental autonomy and reasonable self-protection in
19 the face of agency involvement. Even if Mother had chosen not to cooperate with DHS—which the evidence does
20 not support—she would still have been fully within her rights to refuse any DHS services that were not court-
21 ordered.

22 Oregon law clearly protects a parent's right to refuse non-court-ordered services, and such refusal cannot
23 legally be construed as "non-cooperation" sufficient to justify removal of a child from parental care in itself. To hold
24 otherwise would effectively punish a parent for exercising a protected right and constitute unlawful retaliation
25 beyond the agency's statutory authority.

26 Moreover, coercing or penalizing a parent into accepting voluntary or unmandated agency services
27 implicates constitutional concerns, including the First Amendment. Parents have a fundamental liberty interest,
28 protected by the Due Process Clause and the First Amendment, in controlling communication and association

1 regarding their family. Forced participation in agency programs or compelled speech under threat of child removal
2 may violate these constitutional protections.

3 Legal scholarship and case law increasingly recognize that parental rights to direct their children's
4 upbringing and limit agency intrusion—including refusal to consent to interviews or services—are liberty interests
5 with First Amendment dimensions. Agencies cannot lawfully infringe on these rights absent clear court
6 authorization grounded in a demonstrated risk to the child's safety. Coercive agency practices that punish the
7 exercise of these rights risk unconstitutional retaliation and overreach.

8 The third basis—Mother's pending Washington County case—cannot support removal of Almira from
9 Mother's care absent additional facts establishing that the pending case poses a current safety threat to Almira. DHS
10 has alleged no such facts. The mere pendency of unrelated legal proceedings against a parent is insufficient to justify
11 the state's forcible separation of that parent from her child. *State ex rel. SOSCF v. S.P.*, 307 Or App 459, 477 P3d
12 609 (2020) (removal must be supported by specific facts demonstrating current immediate and severe risk to the
13 child).

14 Even if this Court were to assume, arguendo, that DHS had properly perfected service of summons and
15 petition upon Mother—which DHS has not done—the factual predicates for Almira's removal cannot withstand
16 scrutiny. When the stated bases for removal include a demonstrably false allegation (the refused safety plan), a
17 mischaracterization of lawful parental conduct (the cooperation issue), and a legal conclusion unsupported by
18 particularized facts (the pending case), the removal itself lacks the substantial evidence required by law.

19 VI. The Consequences of False Testimony in Dependency Proceedings

20 When an agency of the state seeks the coercive power of the court to separate a parent from her child, the
21 agency bears a burden of candor. The court must be able to rely on the agency's representations. Parents must be
22 able to trust that the factual record upon which the court relies is accurate. The integrity of the dependency
23 process depends on truthfulness.

24 DHS's representation that Mother "refused a safety plan" is not a matter of interpretation or perspective. It
25 is not a disputed characterization of ambiguous facts. It is a factual statement that is directly contradicted by DHS's
26 own contemporaneous communications. This false statement was material to the court's exercise of jurisdiction over
27 Almira. It goes to the core question before the court: whether DHS made reasonable efforts to prevent removal and
28 whether Mother failed to cooperate with those efforts.

1 The answer, proven by the documentary record, is that DHS made no efforts to prevent removal by offering
2 preventative services to Mother, and Mother could not have refused what was never offered. DHS's contrary
3 representation to the court constitutes a material falsehood that undermines the factual foundation upon which this
4 Court's temporary custody order rests.

5 **VIII. MOTHER'S RIGHT TO REFUSE SERVICES**

6 Even if DHS had offered Mother a safety plan—which it did not—Mother retains the legal right to refuse
7 services that are not court-ordered. A parent's refusal of voluntary services offered by DHS cannot serve as a basis
8 for removal or continued out-of-home placement absent a court order requiring the parent's participation in such
9 services. *State ex rel. SOSCF v. J.C.*, 258 Or App 328, 337, 310 P3d 673 (2013) (parent cannot be compelled to
10 participate in services absent court order).

11 The statutory framework distinguishes between services DHS may offer and services a parent must accept.
12 Prior to adjudication and a court's determination that jurisdiction is appropriate, parents are under no legal obligation
13 to accept DHS's proposed services, participate in DHS's assessments, or submit to DHS's safety plans or engage in
14 communication with DHS whatsoever. DHS's characterization of a parent's exercise of this right as 'non-cooperation'
15 is defamatory and constitutes unlawful retaliation against a parent for exercising a statutory right. The state's
16 coercive authority over parents—including the authority to require participation in services—flows from court
17 orders, not from DHS's unilateral determinations.

18 If DHS seeks to use a parent's refusal of services as evidence supporting removal or continued custody,
19 DHS must first obtain a court order requiring the parent's participation in those services. Absent such an order, a
20 parent's exercise of her right to decline voluntary services cannot constitute grounds for state intervention. To hold
21 otherwise would be to permit DHS to bootstrap its own offers of services into mandatory compliance requirements,
22 effectively rendering the distinction between voluntary and court-ordered services meaningless.

23 Here, even if Mother had refused a safety plan that was actually offered to her prior to DHS's
24 decision to maintain custody—and the record establishes she did not—such refusal would be Mother's right to
25 exercise. DHS cannot penalize Mother for exercising a legal right, defame her character by falsely labeling that
26 exercise of rights as "non-cooperation," and then represent to the court that the exercise of that right justifies
27 continued separation of mother and child. The logic is circular, the defamation is actionable, and the outcome is
28 legally untenable.

1 The foundational defect remains: no safety plan was offered. But the analysis does not end there.
2 Even if one had been offered, and even if Mother had refused it, that refusal would have been within Mother's rights
3 to make, and could not serve as a basis for removal, absent a court order requiring Mother's participation. DHS's
4 defamatory mischaracterization of lawful parental conduct as "non-cooperation," when communicated to this Court
5 and to Mother's own child, constitutes a separate and independent ground warranting dismissal of these proceedings.

6 IX. Conclusion

7 The statutory scheme governing dependency proceedings in Oregon is designed to protect both the welfare
8 of children, the integrity of the family unit and a fit parent's right to the care control and custody of their child(ren).
9 When DHS commits perjury by falsely testifying that a parent refused services that were never offered, when DHS
10 defames a parent by characterizing the lawful exercise of statutory rights as "non-cooperation" and communicates
11 that defamation to both the court and the parent's own child, when DHS retaliates against a parent for exercising her
12 right to refuse voluntary services and to insist on written communication, when DHS fails to make any reasonable
13 efforts to prevent removal, when DHS makes custody decisions without parental input, and when DHS
14 mischaracterizes protective parental conduct as evidence of inadequacy—the process has not merely failed, it has
15 been corrupted by the very agency entrusted to administer it.

16 Mother demonstrated protective capacity by securing family placement for Almira and by seeking
17 information about her daughter's location and safety. DHS characterized these protective actions as evidence against
18 Mother. Mother exercised her right to written communication to preserve an accurate record of DHS's statements
19 and decisions. DHS defamed Mother by characterizing this exercise of rights as non-cooperation. Mother had—and
20 retains—the legal right to refuse voluntary services not required by court order. DHS falsely testified that Mother
21 refused services that were never offered, and used that perjured testimony as a basis for maintaining custody.

22 The Court's exercise of jurisdiction in such circumstances—absent proper service, based on perjured
23 testimony, grounded in defamatory mischaracterizations of lawful conduct, and premised on DHS's retaliation
24 against a parent for exercising statutory rights—renders the proceedings fundamentally defective and void ab initio.
25 Mother respectfully submits that the foregoing facts, established by the contemporaneous written record created by
26 DHS itself, demonstrate that DHS's allegations cannot support the continued exercise of jurisdiction over Almira
27 even if service had been proper. When coupled with DHS's failure to perfect service of summons and petition, these
28 defects require dismissal of the dependency proceedings in their entirety.

1 I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is
2 true and correct.

3 DATED this 29th day of September 2025.
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AshLe' Penn
Mother
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11 DENIED
12 The Oregon Rules of Civil
13 Procedure do not apply
14 to these proceedings.
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17  10-14-2025

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19 Michele C Rini
20 Circuit Court Judge ✓
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